

NON-DISCLOSURE AGREEMENT

One-Way (Disclosing Party to Receiving Party)

This Non-Disclosure Agreement (the "**Agreement**") is entered into as of the date of the last signature below (the "**Effective Date**") by and between:

Disclosing Party: _____ (the "**Disclosing Party**" or "**Seller**"), an entity organized under the laws of _____, with its principal place of business at _____.

Receiving Party: Rewind Tariffs LLC and/or its designated affiliates, agents, and assigns (the "**Receiving Party**" or "**Buyer**"), with its principal place of business at _____.

The Disclosing Party and the Receiving Party are each referred to herein as a "**Party**" and collectively as the "**Parties**."

RECITALS

WHEREAS, the Disclosing Party may possess rights to refunds of duties paid pursuant to the International Emergency Economic Powers Act (IEEPA) and related executive orders; and

WHEREAS, the Disclosing Party wishes to disclose certain confidential information to the Receiving Party for the sole purpose of evaluating a potential transaction involving the purchase, assignment, or monetization of such refund rights (the "**Purpose**"); and

WHEREAS, the Receiving Party wishes to receive and review such information under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Definition of Confidential Information

"**Confidential Information**" means any and all non-public information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, electronically, or by any other means, including but not limited to:

- (a) Customs entry data, Entry Summary reports (CF 7501 / ES-003), HTS classifications, and duty payment records;
- (b) Commercial invoices, bills of lading, packing lists, and other trade documentation;
- (c) Financial information, including revenue figures, cost structures, duty exposure amounts, and refund estimates;

- (d) Supply chain contracts, vendor agreements, and cost-sharing arrangements;
- (e) Business strategies, operational processes, customer lists, and proprietary methodologies;
- (f) Any information identified as confidential at the time of disclosure or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

2. Exclusions from Confidential Information

Confidential Information does not include information that:

- (a) Is or becomes publicly available through no fault or action of the Receiving Party;
- (b) Was already in the Receiving Party's possession without restriction prior to disclosure, as evidenced by written records;
- (c) Is independently developed by the Receiving Party without use of or reference to the Confidential Information;
- (d) Is rightfully received from a third party without restriction on disclosure; or
- (e) Is required to be disclosed by law, regulation, or court order, provided the Receiving Party gives the Disclosing Party prompt written notice and cooperates in seeking a protective order.

3. Obligations of the Receiving Party

The Receiving Party agrees to:

- (a) Hold all Confidential Information in strict confidence and not disclose it to any third party except as expressly permitted herein;
- (b) Use the Confidential Information solely for the Purpose and for no other purpose;
- (c) Limit access to Confidential Information to its employees, officers, directors, advisors, and agents who have a need to know and who are bound by confidentiality obligations at least as protective as those contained herein;
- (d) Protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care;
- (e) Not reverse engineer, decompile, or disassemble any Confidential Information;
- (f) Promptly notify the Disclosing Party of any unauthorized use or disclosure of Confidential Information.

4. Permitted Disclosures

The Receiving Party may disclose Confidential Information to its legal counsel, financial advisors, and potential co-investors or funding sources, provided that such parties are bound by written confidentiality obligations no less restrictive than those contained in this Agreement and the Receiving Party remains responsible for any breach by such parties.

5. No License or Rights Granted

Nothing in this Agreement grants the Receiving Party any license, right, title, or interest in or to the Confidential Information or any intellectual property of the Disclosing Party. All Confidential Information remains the sole property of the Disclosing Party.

6. No Obligation to Transact

This Agreement does not obligate either Party to enter into any further agreement, transaction, or business relationship. Either Party may terminate discussions at any time and for any reason without liability, provided the obligations of confidentiality survive as set forth herein.

7. Return or Destruction of Materials

Upon written request by the Disclosing Party or upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, including all copies, summaries, and extracts thereof, and shall certify in writing that it has done so. Notwithstanding the foregoing, the Receiving Party may retain one archival copy solely for legal compliance and record-keeping purposes, subject to the continuing confidentiality obligations of this Agreement.

8. Term and Survival

This Agreement shall remain in effect for a period of **two (2) years** from the Effective Date unless terminated earlier by either Party upon thirty (30) days' written notice. The obligations of confidentiality shall survive termination or expiration of this Agreement for a period of **three (3) years** following such termination or expiration.

9. Remedies

The Disclosing Party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages may be an inadequate remedy. Accordingly, in addition to any other remedies available at law or in equity, the Disclosing Party shall be entitled to seek injunctive or other equitable relief to prevent or restrain any breach or threatened breach of this Agreement, without the requirement of posting a bond or other security.

10. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. Any dispute arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in New York County, New York, and each Party consents to the personal jurisdiction of such courts.

11. Miscellaneous

(a) **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous oral or written agreements.

(b) **Amendments.** This Agreement may not be amended or modified except by a written instrument signed by both Parties.

(c) **Assignment.** Neither Party may assign this Agreement without the prior written consent of the other Party, except that the Receiving Party may assign this Agreement to an affiliate or successor entity without consent.

(d) **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

(e) **Waiver.** No waiver of any provision of this Agreement shall constitute a waiver of any other provision or of the same provision on another occasion.

(f) **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed original signatures for all purposes.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date last signed below.

DISCLOSING PARTY (SELLER)

RECEIVING PARTY (BUYER)

Signature

Signature

Printed Name

Printed Name

Title

Title

Date

Date

This document is for informational purposes and does not constitute legal advice. Each party should consult independent legal counsel before execution.